3. With regard to the selection for a temporary or officiating appointment to a post, if (a) the person appointed is not likely to hold the post for a period of more than one year and (b) it is necessary in the public interest to make the appointment immediately and reference to the UPSC will cause undue delay

4. With regard to the appointments to a bulk of Group C and Group D Central Services

5. With regard to the appointments to the posts of Chairman and members of the boards, commissions, tribunals and other similar authorities

6. With regard to the appointments to the posts of Heads of Diplomatic, Consular and other similar Indian Missions in countries abroad (eg. Ambassadors, High Commissioners, Ministers, Commissioners, Consuls – General, Representatives, Agents)

The President can exclude posts, services and matters from the purview of the UPSC. The Constitution states that the President, in respect to the all-India services and Central services and posts may make regulations specifying the matters in which, it shall not be necessary to consult the UPSC. But, all such regulations made by the President shall be laid before each House of Parliament for at least 14 days. The Parliament can amend or repeal them.

Under the above provision, the President has made regulations which are called as the UPSC (Exemption from Consultation) Regulations, 1958. These Regulations have been amended from time to time.

ROLE

The Constitution visualises the UPSC to be the 'watch-dog of merit system' in India. It is concerned with the recruitment to the All-India Services and Central Services—group A and group B and advises the government, when consulted, on promotion and disciplinary matters. It is not concerned with the classification of services, pay and service conditions, cadre management, training, and so on. These matters are handled by the Department of Personnel and Training—one of the three departments of the Ministry of Personnel, Public Grievances and Pensions[4]. Therefore, the UPSC is only a central recruiting agency while the Department of Personnel and Training is the central personnel agency in India.

The role of the UPSC is not only limited, but also recommendations made by it are only of advisory nature and hence, not binding on the government. It is upto the Union government to accept or reject that advise. Further, the government can also make rules which regulate the scope of the advisory functions of the UPSC[5].

Also, the emergence of Central Vigilance Commission (CVC) in 1964 affected the role of the UPSC in disciplinary matters. This is because both are consulted by the government while taking disciplinary action against a civil servant. The problem arises when the two bodies tender conflicting advise. However, the UPSC, being an independent constitutional body, has an edge over the CVC, which is created by an executive resolution of the Government of India and conferred a statutory status in 2003.

Table 44.1 Articles Related to the UPSC at a Glance